

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

**CERTAIN DYNAMIC RANDOM ACCESS
MEMORY (DRAM) DEVICES,
PRODUCTS CONTAINING THE SAME,
AND COMPONENTS THEREOF (III)**

Investigation Docket No. 337-TA-3930

**COMPLAINANT NETLIST, INC.'S REPLY
PUBLIC INTEREST STATEMENT**

Complainant Netlist, Inc. (“Netlist”) responds to Proposed Respondents’ and non-parties’ public interest statements.¹ Those submissions are plain efforts to “weaponize the public interest factors as procedural obstacles to meritorious complaints.”² Micron is a repeat adjudicated infringer of Netlist patents. Despite touting its U.S. presence, Micron *does not manufacture any of the Accused Products in the U.S.*³ Micron has always manufactured the Accused Products overseas to take advantage of cheaper labor and parts. If anything, Netlist’s requested relief incentivizes Micron to move its DDR5 DIMM manufacturing to the U.S., furthering the administration’s goal of increasing U.S. manufacturing. The Commission need not delegate public interest issues to the ALJ because DDR5 DIMM memory modules are fungible, and Netlist licensees Samsung and SK hynix are capable of addressing U.S. consumer demand by shifting international supply to the U.S. market, with Micron taking up the overseas demand. This is exactly what happened when SK hynix was subject to significant tariffs a number of years ago. And because Netlist remains a willing licensor, Micron has options to continue supplying the U.S. market even upon a finding of violation of Section 337. Accordingly, the requested relief poses no potential harm to the public interest.

¹ Respondents Micron Technology, Inc. and Micron Semiconductor Products, Inc. (“Micron”) (EDIS No. 892398); Hewlett Packard Enterprise Co. (“HPE”) (EDIS No. 892690); Lenovo Group Ltd. and Lenovo (United States) Inc. (“Lenovo”); and Super Micro Computer, Inc. (“Supermicro”) (EDIS No. 892706); non-parties Google LLC (EDIS No. 892701), and U.S. Senators Crapo, Kaine, Risch, Schumer, and Warner (EDIS Nos. 8926002–4, 8926008–9).

² *Certain Dynamic Random Access Memory (DRAM) Devices, Prods. Containing the Same, & Components Thereof*, Inv. No. 337-TA-1472, Joint Comment on the Public Interest of the U.S. Patent & Trademark Office and the U.S. Department of Justice (“DOJ & PTO Statement”), EDIS Doc. ID No. 864941 at 4. The DOJ and PTO affirmed the importance of enforcing valid patent rights, supporting Netlist in a prior Investigation involving most of the patents asserted here.

³ <https://www.thelec.net/news/articleView.html?idxno=10726> (Manassas facility only qualifying for “DDR4 and low-power DRAM (LPDDR4)”); <https://www.micron.com/us-expansion/va> (similar); EDIS No. 8926002 at 2 (inaccurately stating “Micron is the only company that fabricates semiconductor memory in the U.S.-all in Manassas, Virginia.”).

I. THE REQUESTED RELIEF DOES NOT RAISE ANY PUBLIC HEALTH, SAFETY, OR WELFARE CONCERNS

Proposed Respondents contend that because some devices with medical applications use DDR5 DIMMs, an exclusion order imperils public health. But that is wrong for several reasons.

First, Micron’s DDR5 DIMM products are standardized, and therefore fungible, products, and these products are available from multiple sources. Samsung and SK hynix, both Netlist licensees, supply functionally identical substitutes that are plug-compatible with the infringing Micron products. Thus, large customers frequently engage in dual sourcing, routinely sourcing their DDR5 modules from two or even three of the top suppliers to mitigate supply chain disruption. In other words, customers themselves substitute among licensed and infringing products. Indeed, HPE acknowledges that its servers do not require Micron’s DDR5 DIMMs and can instead rely on Netlist-licensed suppliers. EDIS No. 892690 at 1, 4 (<25% market share for Micron, trailing Samsung and SK hynix).

Second, an exclusion order would not eliminate technology vital to AI or national security. Micron and the non-party submissions decry the potential harm to the public interest, but those submissions fundamentally misunderstand the nature of the accused products and the scope of the requested relief. The accused products are DDR5 DIMMs memory end products, which are made by integrating and packaging particular types of DRAM with controllers, power management integrated circuits, and firmware. Netlist does not broadly accuse DRAM chips that are imported into the U.S., and is not seeking to bar importation of DRAM into the U.S. that is used for any purpose *other than* assembling infringing Micron RDIMM and MRDIMM modules.⁴ Nor would an exclusion order

⁴ For this reason, Micron’s request that the Commission decline to include “and components thereof” within the scope of remedial relief makes no sense. Micron should not be permitted to circumvent remedial relief by importing the components of DDR5 DIMM end products just to assemble them into finished products in the U.S

impact DRAM chips manufactured in domestic fabrication facilities for domestic assembly promoted by the CHIPS Act.

Proposed Respondents identify no unique advantage of the accused products that would eliminate their public benefits if relief issues. Rather than concretely identify devices that rely on the accused products, Proposed Respondents broadly speculate about medical and energy applications. EDIS No. 892398 at 2-3; EDIS No. 892706 at 3. That does not suffice because the allegations do not identify “unique components” of Proposed Respondents’ products “integral to the delivery of healthcare or the maintenance of public safety.”⁵ The Commission’s prior decisions confirm that excluding infringing memory products does not, without more, imperil the public interest.⁶

II. THERE IS NO NEGATIVE IMPACT ON U.S. COMPETITIVE CONDITIONS

An exclusion order would improve, not harm, U.S. competitive conditions by protecting Netlist’s lawful American innovation and encouraging Micron to pursue domestic manufacturing of its accused products. Micron has chosen for decades to offshore all elements of DIMM manufacturing. To the extent Micron does not take an available license, this proceeding will encourage Micron to shift manufacturing to the U.S.

Moreover, other DDR5 DIMM manufacturers, including Netlist’s licensees, can reallocate international supply to the U.S. and capture the demand resulting from an exclusion order. If Micron were excluded, its target markets would lie outside the U.S., and Micron’s supply to those markets would free competing suppliers to import more into the U.S. Because Micron manufactures the

⁵ Netlist’s Public Interest Statement at 2 (discussing *Certain Non-Volatile Memory Devices and Products Containing the Same*, Inv. No. 337-TA-1046, Comm’n Op. (Oct. 9, 2018)).

⁶ *E.g.*, *Certain Memory Modules and Components Thereof, and Products Containing Same*, Inv. No. 337-TA-1023, ID at 174 (Nov. 14, 2017) (“[t]he evidence does not show that all modern computing technology will suddenly become unavailable for healthcare uses if an exclusion order for certain memory modules issues”).

Accused Products entirely outside the U.S., it is well positioned to redistribute them worldwide. Current trade restrictions already circumscribe exports to and from certain countries, and market participants already know how to manage regional constraints efficiently. An exclusion order will create incentives for market participants other than Micron to direct more supply to the U.S. History confirms that the memory industry's sophisticated, resilient international supply chain adapts to country-specific shocks within months: when SK hynix faced substantial tariffs from the U.S., the European Union, and Japan in the early 2000s, no supply crisis followed because suppliers reallocated production; when Micron exited the Chinese market, rival suppliers filled the void.⁷

III. THERE ARE LIKE OR DIRECTLY COMPETITIVE ARTICLES IN THE U.S.

It is undisputed that Netlist and its licensees account for over 70% of the U.S. DDR5 DIMM market. EDIS No. 892690 at 4. That fact alone undermines Proposed Respondents' assertion that there are no directly competitive articles to the accused products. Their own submissions confirm otherwise: HPE's statement recognizes no material difference amongst suppliers, confirming that downstream customers can transition between sources without losing necessary functionality.

The common measure of capacity in the DRAM market is wafer starts. 2026 wafer starts per month are collectively estimated at 2,035,000. Micron is only 18% of this capacity based on Citrini Research data.⁸ Micron claimed that capacity growth in 2026 for DRAM is expected to be 20%.⁹ The data makes clear that capacity is not fixed but instead growing rapidly.

IV. THERE IS NO ADVERSE IMPACT ON U.S. CONSUMERS

⁷ <https://www.taipeitimes.com/News/biz/archives/2026/04/23/2003856066>.

⁸ <https://www.tomshardware.com/pc-components/dram/exmt-close-to-matching-microns-memory-capacity-in-2026-research-claims-would-put-china-on-track-to-become-worlds-second-largest-dram-producer>

⁹ Micron CEO: "For 2026, both DRAM and NAND industry bit shipments are expected to increase around 20% from 2025 levels." <https://futurumgroup.com/insights/micron-technology-q1-fy-2026-sets-records-strong-q2-outlook/>

In the first quarter of 2026, licensees Samsung and SK hynix supplied 67% of the worldwide market, while Micron supplied 22%. EDIS No. 892690 at 4. In the U.S., Netlist and its licensees account for at least 70% of the market. Accordingly, if the Commission excludes Micron's infringing products, ample worldwide supply can be redirected to U.S. consumers. Downstream customers likewise will not have to replace existing products, and existing AI infrastructure and data centers would not be affected by any remedial order. Proposed Respondents' warnings that the U.S. will lose the AI race are hyperbole given ongoing, substantial investment in DIMM capacity by American companies such as Netlist and its licensees. SK hynix and Samsung announced \$529 billion in memory capacity investments.¹⁰ Nor is the focus on potential price increases on point: Micron previously admitted to starting and maintaining a price fixing cartel for DRAM.¹¹ If the industries served by these products are as critical to U.S. interests as Proposed Respondents claim, that is all the more reason to ensure they are supplied domestically rather than left dependent on foreign imports from companies like Micron.

Finally, there is no risk of adverse impact on U.S. consumers because Netlist has proven that it is willing to license the asserted patents. Samsung and SK hynix have licensed them, and Netlist remains willing to license Micron too.

V. CONCLUSION

Netlist's patent rights should not be displaced by Proposed Respondents' attempt to use a public-interest argument to avoid accountability for their infringement. Netlist respectfully requests that the Commission promptly institute this Investigation and decline to delegate the public interest issues to the ALJ.

¹⁰ <https://www.tomshardware.com/tech-industry/semiconductors/south-korea-unveils-usd520-billion-investment-plan-with-samsung-and-sk-hynix-to-expand-memory-chip-dominance-plan-includes-four-new-fabs-and-hbm-facilities-amid-strong-government-support>

¹¹ https://www.justice.gov/archive/opa/pr/2003/December/03_at_696.htm

Dated: August 28, 2026

Respectfully submitted,

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CERTIFICATE OF SERVICE

It is hereby certified that copies of the foregoing **COMPLAINANT NETLIST, INC.'S
REPLY PUBLIC INTEREST STATEMENT** were served on August 28, 2026 as follows:

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